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2027 CYCLE

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CUET UG

Political Science

Crises of the Constitutional Order

Official Syllabus · Politics in India Since Independence · Class 12 · CUET UG 2027 Cycle Notes

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Concept Notes

INSIDE
Solved Examples

INSIDE
Practice MCQs + Solutions

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Syllabus Alignment

Sub-topic	Official syllabus pointer (NTA CUET(UG) Political Science syllabus 2026, the current 2027 baseline — Politics in India Since Independence)	Skills the questions test
The Prelude & Judicial Clash	Search for 'committed' bureaucracy and judiciary — the Kesavananda Bharati verdict and the supersession of judges in April 1973.	Identifying constitutional conflicts between Executive and Judiciary, economic headwinds, and the 1974 Railway Strike led by George Fernandes.
Gujarat & Bihar Movements	Navnirman movement in Gujarat and the Bihar movement — student agitations and Jayaprakash Narayan's call for "Total Revolution".	Tracing Morarji Desai's role in Gujarat, JP's two conditions in Bihar, and the 25 June 1975 Ramlila Maidan rally.
The Emergency (1975–77)	Emergency: context, constitutional and extra-constitutional dimensions, resistance to emergency, and the 42nd Amendment.	Differentiating Article 352 "internal disturbance", MISA detentions, press censorship, Sanjay Gandhi's role, and the "Mini-Constitution".
1977 Elections & Aftermath	1977 elections, formation of the Janata Party, Shah Commission of Inquiry, the 44th Amendment, and the rise of civil liberties groups.	Explaining the defeat of Congress in North India, Shah Commission findings, 44th Amendment safeguards, and the emergence of PUCL/PUDR.

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EXAM TIP

High-Scoring Insight & Key Cognitive Traps for CUET UG:

- **Lohia vs. JP:** Dr. Rammanohar Lohia coined **"Non-Congressism"** (1967) to unite opposition parties; Jayaprakash Narayan (JP) called for **"Total Revolution"** (Sampoorna Kranti, 1974) demanding moral, social, economic, and political transformation.
- **Emergency Grounds:** The Emergency on 25 June 1975 was declared under Article 352 on the ground of **"internal disturbance"**. The term **"armed rebellion"** was only substituted later by the 44th Constitutional Amendment Act, 1978.
- **Judicial Dissent:** In the notorious **ADM Jabalpur v. Shivkant Shukla (1976)** Habeas Corpus case, Justice H.R. Khanna was the sole courageous dissenter who maintained that the State cannot deprive a person of life and liberty without legal authority even during an Emergency. He was superseded for the Chief Justice post in 1977 as a consequence.
- **Amendment Contrast:** The 42nd Amendment (1976) under Indira extended legislative terms to 6 years and curbed rights; the 44th Amendment (1978) under the Janata government restored the 5-year term and made Articles 20 and 21 non-suspendable.

The Gathering Storm: Economic Distress & the "Committed" State

The euphoric high of the 1971 Bangladesh victory and the socialist slogan **"Garibi Hatao"** evaporated rapidly within two years. By 1973, India was plunged into acute macroeconomic distress, rampant inflation, widespread agrarian unrest, and a ferocious institutional confrontation between the executive branch and the higher judiciary.

Macroeconomic Headwinds (1972–1975)

The Indian economy suffered a convergence of domestic and global shocks between 1972 and 1975:

- **The Post-War Fiscal Burden:** Financing the 1971 military campaign against Pakistan and providing food, medical aid, and shelter to nearly 10 million Bengali refugees severely depleted India's foreign exchange reserves and national capital budget.
- **Termination of US Aid:** In retaliation against India's military liberation of Bangladesh and the signing of the Indo-Soviet Treaty of Friendship, the United States suspended all foreign developmental aid and stopped grain supplies under Public Law 480 (PL-480).
- **The 1973 Global Oil Shock:** Following the Arab-Israeli October War of 1973, the Organization of the Petroleum Exporting Countries (OPEC) quadrupled international crude oil prices. India's oil import bill ballooned overnight, draining scarce foreign exchange.
- **Hyper-Inflation & Agrarian Collapse:** Consecutive monsoon failures in 1972–1973 caused agricultural output to drop sharply, leading to food scarcity, urban rationing, and speculative hoarding. General wholesale prices escalated by **23% in 1973** and skyrocketed by **30% in 1974**, triggering acute popular immiseration.
- **Industrial Stagnation & Wage Freezes:** Industrial production stalled, factory lay-offs mounted, and the Union government introduced the Additional Emoluments (Compulsory Deposit) Act, effectively freezing the salaries and dearness allowances (DA) of government employees.

The All-India Railway Strike (May 1974)

Labor unrest reached a climactic showdown in May 1974 with the historic All-India Railway Strike:

- **Leadership and Demands:** The National Coordination Committee for Railwaymen's Struggle (NCCRS), led by the dynamic socialist trade union leader **George Fernandes**, served a charter of demands demanding bonus payments, an 8-hour workday, and parity in wages and benefits with employees of other public sector undertakings.
- **Paralysis of the National Arteries:** When negotiations collapsed, railway workers walked out on 8 May 1974, completely paralysing India's vast freight and passenger transport grid for **20 days**.
- **Executive Suppression:** Viewing the strike as an attempt to destabilise the constitutional government, Prime Minister Indira Gandhi refused to negotiate. She declared the strike illegal, deployed territorial army battalions and the Border Security Force (BSF), carried out preventive arrests of over 30,000 union workers, evicted families from railway quarters, and crushed the strike without conceding a single substantive demand.

The Judicial Clash & The Doctrine of the "Committed" Judiciary

Simultaneously, a bitter ideological war erupted between the Union government and the Supreme Court over the limits of parliamentary power and fundamental rights:

- **The Underlying Dispute:** Indira Gandhi's government asserted that Parliament, as the elected representative of popular sovereignty, possessed an unfettered right to amend any provision of the Constitution to implement Directive Principles of State Policy and socialist

reforms. The Supreme Court insisted that constitutional limits, fundamental rights, and the rule of law must prevail over transient parliamentary majorities.

- **The Precedent Battles:**
  - **Golaknath v. State of Punjab (1967):** An 11-judge bench held that Parliament had no power to abridge Fundamental Rights under Article 368.
  - **RC Cooper (Bank Nationalisation) & Madhav Rao Scindia (Privy Purses) Cases (1970):** The Court invalidated the executive takeovers and derecognition of princely titles, protecting private property.
  - **Kesavananda Bharati v. State of Kerala (24 April 1973):** In the most momentous ruling in Indian jurisprudence, a 13-judge bench held by a narrow 7:6 majority that while Parliament can amend any article of the Constitution, it cannot alter or destroy its **"Basic Structure"**.
- **The Supersession of Judges (25 April 1973):**
  - By established constitutional convention, the senior-most sitting judge of the Supreme Court was invariably elevated as the Chief Justice of India (CJI).
  - When CJI S.M. Sikri retired on 25 April 1973, the Indira Gandhi government broke this sacred convention. It superseded the three senior-most judges who had ruled against the government in the **Kesavananda Bharati** majority—**Justice J.M. Shelat**, **Justice K.S. Hegde**, and **Justice A.N. Grover**.
  - The government appointed **Justice A.N. Ray**, who had authored a minority judgment favoring unfettered parliamentary power, as the new Chief Justice. The three superseded judges resigned immediately in protest.
- **The Ideology of Commitment:** Senior cabinet ministers, notably Mohan Kumaramangalam and H.R. Gokhale, openly justified the action by arguing that the judiciary and the civil service must not be politically neutral referees, but must be **"committed"** to the socialist philosophy and developmental agenda of the ruling party.

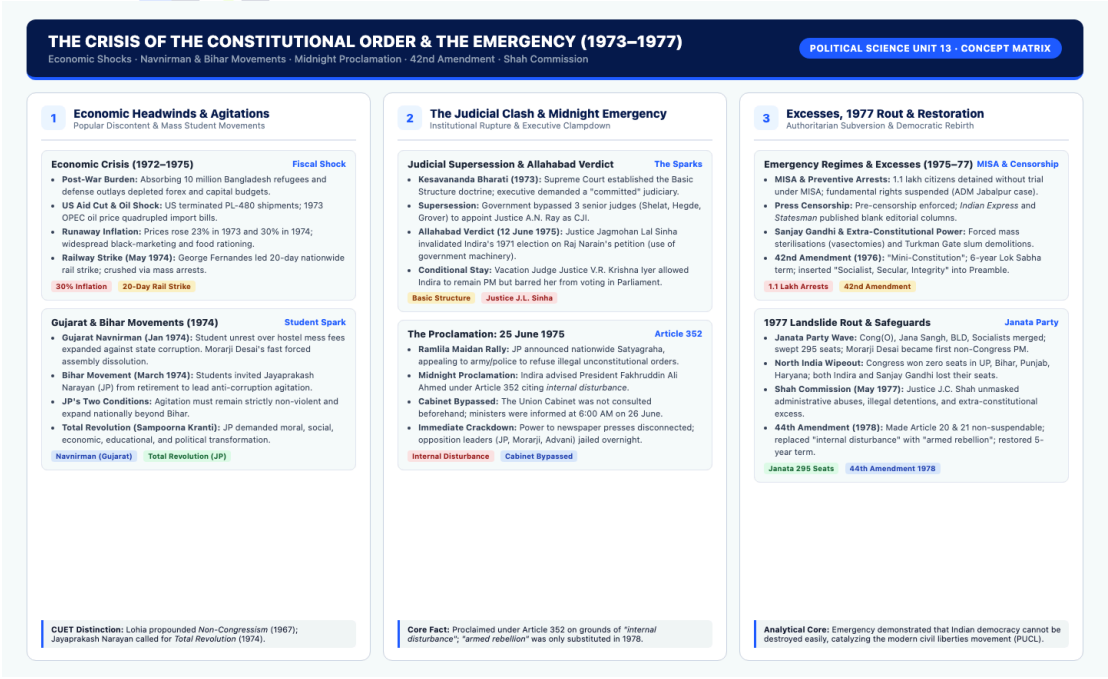


Figure 1: Figure 1 — The Crisis of Constitutional Order & The Emergency: Gathering economic storms, Navnirman and Bihar agitations, the midnight proclamation, 42nd Amendment, and democratic restoration under the Shah Commission.

Student Protests: Gujarat and Bihar

Popular revolt against inflation, unemployment, food scarcity, and systemic political corruption did not begin with established political parties; it was ignited spontaneously by university students in western and northern India.

The Navnirman Movement in Gujarat (January–March 1974)

In January 1974, students at the L.D. College of Engineering in Ahmedabad launched an agitation against a 20% increase in hostel food mess charges:

- **Escalation into Mass Movement:** The protest resonated with the wider public, quickly transforming into the **Navnirman Andolan** (Reconstruction Movement) against rampant corruption, black-marketing, and food hoarding.
- **Chimanbhai Patel Government Targeted:** The agitation demanded the resignation of the Congress state government headed by Chief Minister Chimanbhai Patel (popularly dubbed **Chiman Chor** by protestors).
- **Support of Opposition & Morarji Desai's Fast:** Opposition parties, including the Bharatiya Jana Sangh and Congress (O), joined the agitation. When the state government was dismissed and President's Rule imposed, protestors demanded the total dissolution of the state assembly.
- **The Climax:** In March 1974, veteran Congress (O) leader Morarji Desai went on an indefinite hunger strike demanding fresh assembly elections. The Union government capitulated, dissolved the Gujarat Assembly, and ordered elections for June 1975. In those elections, an anti-Congress coalition—the **Janata Front**—defeated Indira Gandhi's Congress.

The Bihar Movement & Jayaprakash Narayan's "Total Revolution"

In March 1974, inspired by Gujarat, university students in Bihar rose in revolt against rising prices, food scarcity, unemployment, and administrative corruption:

- **Inviting Jayaprakash Narayan:** The Bihar Chhatra Sangharsh Samiti invited the revered veteran freedom fighter and socialist leader **Jayaprakash Narayan (JP)**, who had withdrawn from active party politics to dedicate himself to Vinoba Bhave's Sarvodaya (Bhoodan) movement, to provide moral and political leadership.
- **JP's Two Non-Negotiable Conditions:** JP agreed to lead the agitation on two strict conditions:
  1. The movement must remain strictly and uncompromisingly **non-violent**.
  2. The movement must not confine itself to Bihar, but must expand into a nationwide crusade for comprehensive systemic transformation.
- **The Call for "Total Revolution" (Sampoorna Kranti):** JP elevated a localized student protest into a historic philosophical movement. He proclaimed that the struggle was not merely for changing a Chief Minister or a government, but for **Sampoorna Kranti** (Total Revolution)—a moral, cultural, social, economic, educational, and political regeneration of Indian society.
- **Gheraos and Parallel Governments:** Students organised bandhs, rail rokos, gheraos of government offices, and even established parallel people's organs (**Janata Sarkars**) in several rural districts. JP called for a continuous boycott of legislative assemblies and schools.
- **National Convergence:** JP traversed the country, building a massive national front bringing together disparate opposition forces: the Hindu nationalist Bharatiya Jana Sangh, the agrarian Bharatiya Lok Dal of Charan Singh, the socialist SSP, and the conservative Congress (O).

The Catalyst: The Allahabad Verdict & 25 June 1975

The mounting popular challenge converged with a devastating legal catastrophe for Prime Minister Indira Gandhi in June 1975.

The Historic Allahabad High Court Judgment (12 June 1975)

During the 1971 parliamentary election, socialist leader **Raj Narain** had contested against Indira Gandhi in the Rae Bareli constituency. Defeated by a wide margin, Raj Narain filed an election petition in the Allahabad High Court challenging her victory on grounds of corrupt electoral practices:

- **The Verdict:** On 12 June 1975, **Justice Jagmohan Lal Sinha** of the Allahabad High Court delivered a monumental verdict declaring Indira Gandhi's election to the Lok Sabha null and void.
- **The Grounds of Disqualification:** Justice Sinha found Indira Gandhi guilty of two electoral malpractices under the Representation of the People Act, 1951:
  1. Engaging a gazetted central government officer, Yashpal Kapoor (Officer on Special Duty in the PM's Secretariat), as her election agent before his official resignation had been formally gazetted.
  2. Utilising Uttar Pradesh state government officials, police machinery, and public resources to construct election rostrums and supply electricity for her campaign loudspeakers.
- **The Constitutional Shockwave:** The judgment disqualified Indira Gandhi from holding any elective public office for six years. Technically, she ceased to be a lawful Member of Parliament.
- **The Supreme Court's Conditional Stay (24 June 1975):** Indira Gandhi appealed to the Supreme Court. On 24 June 1975, the vacation judge, **Justice V.R. Krishna Iyer**, granted a **conditional stay**: she was permitted to remain Prime Minister, but was barred from participating in or voting in the proceedings of the Lok Sabha until her appeal was heard by a full constitutional bench.

The Ramlila Maidan Rally & Midnight Proclamation

The conditional stay galvanized the opposition:

- **Ramlila Ground Gathering (25 June 1975):** Jayaprakash Narayan addressed a colossal rally of over 100,000 citizens at Delhi's Ramlila Maidan. He announced a nationwide week of civil disobedience (**Satyagraha**) commencing on 29 June to compel the Prime Minister's resignation.
- **Appeal to the Armed Forces:** Crucially, JP appealed to the police, civil administration, and armed forces to uphold the Constitution and refuse to obey orders that were illegal, immoral, or unconstitutional. The government interpreted this appeal as an incitement to armed mutiny.
- **The Midnight Advice:** That very night, Prime Minister Indira Gandhi met President **Fakhruddin Ali Ahmed**. She advised him to proclaim a National Emergency under **Article 352** of the Constitution on the ground that the security of India was threatened by **"internal disturbance"**.
- **Cabinet Bypassed:** In total violation of democratic procedures, the Union Cabinet was never informed or consulted before the proclamation was signed by the President late on the night of 25 June. Indira Gandhi summoned a hurried cabinet meeting at 6:00 AM on 26 June 1975 solely to present the ministers with a **fait accompli**.

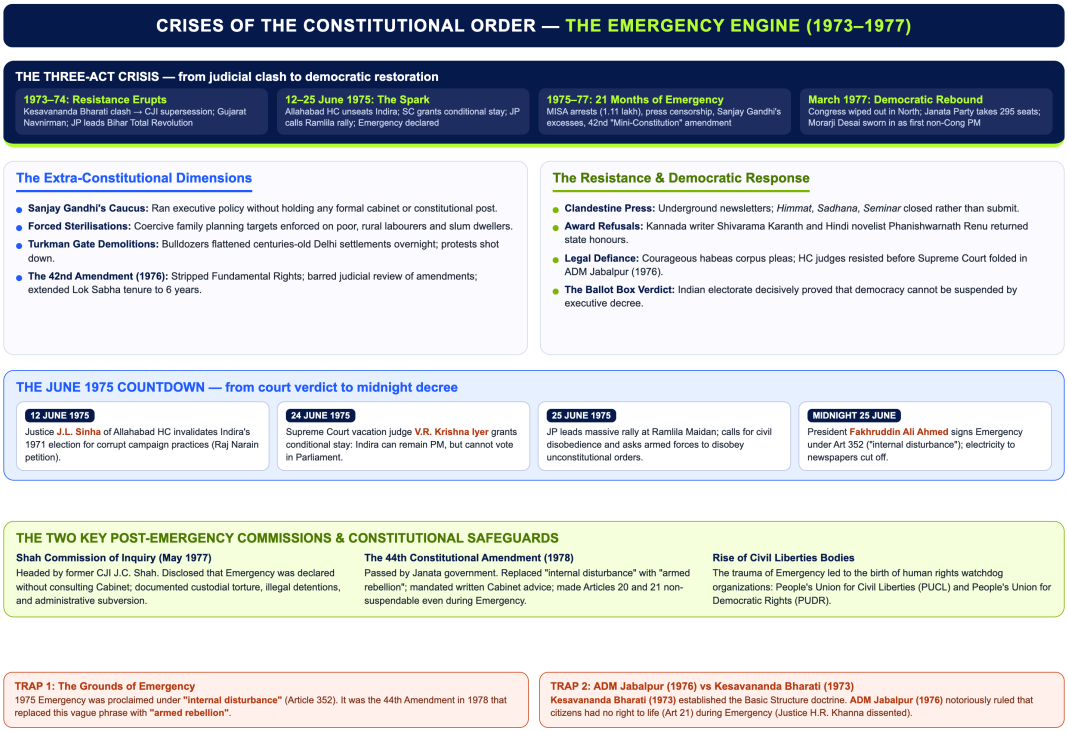


Figure 2: Figure 2 — The Emergency Engine (1973–1977): From economic distress, judicial confrontation, and the Allahabad HC verdict to the 21-month Emergency, Sanjay Gandhi's excesses, and the Janata Party's democratic restoration in 1977.

The Emergency Regime (1975–1977): Dimensions and Excesses

The declaration of Emergency suspended constitutional democracy and concentrated total dictatorial power in the Union executive for 21 months.

The Repressive Constitutional Machinery

1. **Suspension of Fundamental Rights:** Under Article 359, the President suspended the right of citizens to approach the courts for the enforcement of Fundamental Rights, including Article 14 (Equality), Article 19 (Freedoms of speech, assembly, association), and Article 21 (Protection of life and personal liberty).
2. **Preventive Detention & MISA:** The **Maintenance of Internal Security Act (MISA)** and the Conservation of Foreign Exchange and Prevention of Smuggling Activities Act (COFEPOSA) were weaponised to detain political opponents without charge, warrant, or trial. Nearly 111,000 individuals—including JP, Morarji Desai, Atal Bihari Vajpayee, L.K. Advani, Charan Singh, and George Fernandes—were imprisoned.
3. **Pre-Censorship of the Press:** Electricity to the printing presses of major national dailies along Delhi's Bahadur Shah Zafar Marg was abruptly severed on the night of 25 June. Special press censors were installed in newspaper offices. Editors were legally forbidden from publishing any news, editorial, cartoon, or letter critical of the government. Leading dailies such as **The Indian Express** and **The Statesman** registered silent protest by printing blank editorial columns.
4. **Banning of Socio-Political Organisations:** The government banned 26 political and socio-cultural organisations, prominently including the Rashtriya Swayamsevak Sangh (RSS), Jamaat-e-Islami, Anand Marg, and various Naxalite factions. Strikes, picketing, and demonstrations were criminalised.

5. **The Infamous Habeas Corpus Verdict (ADM Jabalpur, 1976):** When high courts across India bravely entertained habeas corpus petitions of detainees, the Supreme Court in **ADM Jabalpur v. Shivkant Shukla** (April 1976) held by a 4:1 majority (Chief Justice A.N. Ray, Beg, Sarkaria, and Chandrachud) that under a proclaimed Emergency, no citizen had any locus standi to approach a court to challenge illegal executive detention, even if mala fide. **Justice H.R. Khanna** delivered a historic, solitary dissent defending human freedom, for which he was subsequently superseded for the office of Chief Justice.

Extra-Constitutional Power: Sanjay Gandhi and the Five-Point Programme

While Indira Gandhi unveiled a populist **Twenty-Point Programme** focusing on land ceilings, rural debt liquidation, and handloom subsidies, real executive power gravitated towards her younger son, **Sanjay Gandhi**:

- **The Power Troika:** Sanjay Gandhi held no official cabinet or parliamentary office, yet functioned as an extra-constitutional authority directing Chief Ministers, police chiefs, and cabinet ministers.
- **The Five-Point Programme:** Sanjay championed family planning, afforestation, literacy, anti-dowry campaigns, and slum clearance.
- **The Coercive Excesses:**
  - **Forced Mass Sterilisations:** Bureaucrats, schoolteachers, and police officers were assigned rigid vasectomy and tubectomy quotas. Millions of poor, illiterate men were rounded up and forcibly sterilised in unhygienic roadside camps across northern India.
  - **Turkman Gate Slum Demolitions (April 1976):** Thousands of impoverished Muslim residents in Old Delhi were brutally evicted, their historic homes demolished with bulldozers, and protestors fired upon by police to clear space for urban beautification.

Underground Resistance and Cultural Dissent

Contrary to the regime's claims of universal compliance, underground resistance flourished across the nation:

- **The Socialist Underground & Baroda Dynamite Case:** George Fernandes evaded arrest by disguising himself as a Sikh sadhu, operating an extensive underground network that printed secret newsletters (**Satya Samachar**) and smuggled communication abroad. He and 24 others were later arrested in the sensational **Baroda Dynamite Case**, charged with conspiring to blow up government railway tracks and bridges to disrupt state authority.
- **Clandestine Networks:** Rashtriya Swayamsevak Sangh (RSS) cadres under Nana Deshmukh organized an underground Satyagraha movement, distributing cyclostyled pamphlets and helping families of jailed political activists.
- **Literary and Intellectual Protest:** Renowned writers registered public outrage by returning prestigious state honors:
  - Celebrated Kannada novelist and scholar **K. Shivarama Karanth** returned his Padma Bhushan award.
  - Renowned Hindi novelist **Phanishwar Nath 'Renu'** returned his Padma Shri in protest against the throttling of democracy.
- **Foreign Media & Diaspora Resistance:** When domestic news was censored, foreign news agencies (BBC, Time, Newsweek) reported regime abuses. Indian diaspora groups organized protests in London and Washington.

The 42nd Constitutional Amendment Act, 1976: The "Mini-Constitution"

Capitalising on the imprisonment of opposition MPs, the Indira government enacted the sweeping 42nd Constitutional Amendment Act in November 1976:

- **Preamble Alteration:** Inserted the words **"Socialist, Secular"** and **"Integrity"** into the Preamble of the Constitution.
- **Extension of Terms:** Extended the duration of the Lok Sabha and State Legislative Assemblies from **5 years to 6 years**.
- **Subordination of Fundamental Rights:** Made all Directive Principles superior to Fundamental Rights under Articles 14, 19, and 31.
- **Curtailing Judicial Review:** Stripped the Supreme Court and High Courts of their power to evaluate the constitutional validity of constitutional amendment acts.
- **Fundamental Duties:** Added Part IV-A (Article 51A) prescribing ten Fundamental Duties of citizens upon the recommendation of the Swaran Singh Committee.

The 1977 General Elections & The Janata Restoration

In a shocking and unexpected announcement on 18 January 1977, Prime Minister Indira Gandhi dissolved the Lok Sabha and scheduled general elections for March 1977, releasing political prisoners and easing press censorship.

Formation of the Janata Party

Sensing a historic opportunity, major non-communist opposition parties submerged their separate identities under the moral guidance of Jayaprakash Narayan to form a single unified political formation: the **Janata Party**.

- **Constituent Parties:** The Janata Party merged four diverse political streams:
  1. **Congress (O)** led by Morarji Desai.
  2. **Bharatiya Jana Sangh (BJS)** led by Atal Bihari Vajpayee and L.K. Advani.
  3. **Bharatiya Lok Dal (BLD)** led by Chaudhary Charan Singh.
  4. **Socialist Party** led by George Fernandes and Madhu Limaye.
- **Congress for Democracy (CFD):** On the eve of the election, veteran Congress leader and Dalit icon **Jagjivan Ram**, along with H.N. Bahuguna and Nandini Satpathy, resigned from Indira Gandhi's cabinet and party, founding the Congress for Democracy (CFD), which formed an electoral alliance with the Janata Party.
- **The Election Narrative:** The election became a stark, bipolar moral referendum: **"Democracy versus Dictatorship"**.

The Tectonic Verdict of March 1977

The March 1977 election results delivered the most devastating electoral defeat in the history of the Indian National Congress:

- **Janata Landslide:** The Janata Party and its allies swept **330 seats** out of 542 in the Lok Sabha. The Janata Party alone secured **295 seats**, winning an absolute majority on its own.
- **Total Decimation of Congress in North India:** In its traditional Hindi heartland, the Congress was utterly annihilated:
  - Congress won **zero seats** in Uttar Pradesh (0/85), Bihar (0/54), Punjab (0/13), and Haryana (0/10).
  - It secured only 1 seat in Rajasthan and 1 seat in Madhya Pradesh.

- Both **Indira Gandhi** (defeated by Raj Narain in Rae Bareli) and her son **Sanjay Gandhi** (defeated in Amethi) lost their parliamentary seats.

- **The North-South Divide:** Interestingly, Congress maintained its strength in southern India, winning 41 out of 42 seats in Andhra Pradesh and 26 out of 28 in Karnataka, as the coercive excesses of forced sterilisation and slum demolitions had been concentrated primarily in northern states.
- **First Non-Congress Prime Minister:** On 24 March 1977, 81-year-old **Morarji Desai** was sworn in as India's first non-Congress Prime Minister, heading a coalition government that included Deputy PM Charan Singh and External Affairs Minister Atal Bihari Vajpayee.

The Fragility of Coalition Rule & The Return of Congress (1977–1980)

Although the Janata Party achieved a historic democratic restoration, its government was crippled by bitter internal rivalries:

- **The Leadership Troika Rivalry:** Intense factional warfare erupted among three competing leaders:
  1. **Morarji Desai:** The ascetic Gandhian Prime Minister representing the conservative Congress (O).
  2. **Chaudhary Charan Singh:** Deputy PM and Home Minister representing the rising agrarian peasant castes (OBCs) of northern India.
  3. **Jagjivan Ram:** Defense Minister and senior Dalit stalwart of the CFD.
- **The Dual-Membership Controversy:** Socialists led by Madhu Limaye objected to former Jana Sangh members (Vajpayee, Advani) maintaining active dual membership in the RSS.
- **Collapse of the Government (July 1979):** Charan Singh broke away from the Janata Party, forcing Morarji Desai's resignation. Charan Singh was sworn in as Prime Minister with outside support from Indira Gandhi's Congress.
- **Charan Singh's Short Premiership:** Indira Gandhi abruptly withdrew support before Charan Singh could even face a single confidence vote on the floor of the Lok Sabha, forcing fresh elections in January 1980.
- **The 1980 Landslide:** Disillusioned by Janata infighting, Indian voters swept Indira Gandhi back to power with 353 Lok Sabha seats in January 1980 on the slogan **"Vote for Indira, Bring Back Stability"**.

Lessons of the Emergency & Rise of Civil Liberties

The 21-month Emergency was the most severe stress-test ever endured by the Indian democratic republic, yielding enduring institutional safeguards:

The Shah Commission of Inquiry (May 1977)

The Janata government appointed a commission of inquiry headed by retired Supreme Court Chief Justice **J.C. Shah**:

- **The Mandate:** To investigate allegations of abuse of authority, excesses, illegal arrests, custodial tortures, and bulldozing committed during the Emergency.
- **Key Findings:** The Shah Commission uncovered that thousands were jailed without legal grounds; the Cabinet was unconstitutionally bypassed during the midnight declaration; and Sanjay Gandhi operated as an illegal power center without democratic accountability.

The 44th Constitutional Amendment Act, 1978

To permanently inoculate the Indian Constitution against future authoritarian subversion, the Janata government passed the 44th Constitutional Amendment Act, 1978:

- **Grounds for Emergency:** Substituted the vague phrase **"internal disturbance"** with **"armed rebellion"**.
- **Cabinet Written Advice:** Mandated that the President can proclaim an Emergency **only** upon the unanimous **written advice** of the Union Cabinet, eliminating midnight unilateral decisions by a Prime Minister.
- **Parliamentary Approval:** Required parliamentary approval by a special two-thirds majority within one month (instead of two months by simple majority).
- **Non-Suspendable Rights:** Explicitly stipulated that the fundamental rights enshrined in **Article 20** (Protection against retroactive criminal laws and double jeopardy) and **Article 21** (Right to life and personal liberty) **cannot be suspended** under any circumstances, even during a proclaimed Emergency.
- **Restoration of Legislative Terms:** Restored the regular 5-year term for the Lok Sabha and State Legislative Assemblies.

The Modern Human Rights Awakening & PIL Revolution

The state terror of the Emergency catalyzed India's modern civil liberties movement. Realising that institutional checks could crumble, citizens founded autonomous watchdog organisations, prominently the **People's Union for Civil Liberties (PUCL)** and the **People's Union for Democratic Rights (PUDR)**.

Furthermore, to regain the public trust lost during the ADM Jabalpur ruling, the Supreme Court in the late 1970s and 1980s under **Justices P.N. Bhagwati** and **V.R. Krishna Iyer** pioneered **Public Interest Litigation (PIL)** and relaxed the traditional rules of **locus standi**, transforming the higher judiciary into a champion of the disadvantaged and marginalized.

Chapter Synthesis & Cognitive Mindmap



Figure 3: Figure 3 — Crises of the Constitutional Order Mindmap: Comprehensive structural overview of economic strain, student movements, the Allahabad verdict, Emergency excesses, 1977 rout, and permanent safeguards.

HIGH-YIELD MEMORY HOOKS & HISTORIOGRAPHICAL POINTERS

- **Railway Strike (May 1974):** 20 days; led by **George Fernandes** (NCCRS); crushed via mass preventive detentions.
- **Judicial Supersession (April 1973): Justice A.N. Ray** appointed CJI, bypassing 3 seniors (**Shelat, Hegde, Grover**) who ruled in Kesavananda Bharati.
- **Gujarat Navnirman (Jan 1974):** Started over college mess food fees; **Morarji Desai** hunger strike forced dissolution of Gujarat Assembly.
- **Bihar Movement (March 1974): Jayaprakash Narayan (JP)** gave call for **Sampoorna Kranti** (Total Revolution); two conditions: non-violent and nationwide.
- **Allahabad HC Ruling (12 June 1975): Justice Jagmohan Lal Sinha** set aside Indira Gandhi's 1971 election on **Raj Narain's** petition.
- **Conditional Stay (24 June 1975):** Vacation Judge **Justice V.R. Krishna Iyer** permitted Indira to stay PM but barred her from voting in Lok Sabha.
- **Midnight Proclamation (25 June 1975):** Proclaimed by President **Fakhruddin Ali Ahmed** under **Article 352** on grounds of **"internal disturbance"**.
- **Habeas Corpus Case (ADM Jabalpur 1976):** 4:1 ruling upholding suspension of Art 21; **Justice H.R. Khanna** delivered sole heroic dissent.
- **42nd Amendment (1976):** 6-year legislative term; added **"Secular, Socialist, Integrity"**; known as "Mini-Constitution".
- **1977 Elections & Restoration:** Janata Party won **295 seats** (330 with allies); Congress won **0 seats** in UP, Bihar, Punjab, Haryana; **Morarji Desai** became PM.

MASTER STRATEGY CHEATSHEET — CRISES OF CONSTITUTIONAL ORDER

▸**Economic & Labor Shocks (1973–75):** US aid freeze + 1973 OPEC oil shock → 30% inflation in 1974 → May 1974 Railway Strike (20 days, George Fernandes, crushed by executive). ▸**Student Movements & Total Revolution:** Gujarat Navnirman (Jan 1974, mess fees → Morarji Desai fast → assembly dissolved) → Bihar Movement (March 1974, JP invited → non-violence + national scope → "Sampoorna Kranti" call → 25 June 1975 Ramlila Maidan rally). ▸**The Constitutional Clash & Midnight Emergency:** April 1973 supersession of judges (Shelat, Hegde, Grover bypassed for A.N. Ray) → 12 June 1975 Allahabad HC verdict (Justice J.L. Sinha disbars Indira on Raj Narain petition) → 24 June 1975 Justice V.R. Krishna Iyer conditional stay → Midnight 25 June 1975 Article 352 declared on "internal disturbance" → Cabinet informed 6 AM 26 June. ▸**Authoritarian Regimes & 1977 Landslide Rout:** 1.1 lakh MISA arrests → Press pre-censorship (blank editorials in **Indian Express** & **Statesman**) → Sanjay Gandhi 5-point plan (vasectomy quotas, Turkman Gate demolitions) → 42nd Amendment 1976 (6-yr term, Mini-Constitution) → March 1977 Elections: Janata Party wins 295 seats, Congress wiped out in North India (0 in UP, Bihar, Punjab, Haryana) → Morarji Desai sworn in as first non-Congress PM. ▸**Safeguards & Inquiries:** Shah Commission (May 1977, Justice J.C. Shah) → 44th Amendment 1978: "internal disturbance" replaced by "armed rebellion", Cabinet written advice mandatory, Art 20 & 21 non-suspendable, 5-year term restored → Rise of PUCL, PUDR, and PIL revolution under Justice P.N. Bhagwati.

THE SEVEN FATAL CUET TRAPS

1. **Lohia vs JP:** Rammanohar Lohia coined **"Non-Congressism"** (1967); Jayaprakash Narayan proclaimed **"Total Revolution"** (1974). Never confuse them!
2. **Grounds of 1975 Emergency:** Declared under Article 352 on ground of **"internal disturbance"**. **"Armed rebellion"** was introduced by the 44th Amendment in 1978.
3. **Allahabad Judge vs Vacation Judge: Justice Jagmohan Lal Sinha** invalidated Indira's election (12 June 1975); **Justice V.R. Krishna Iyer** granted conditional stay (24 June 1975).
4. **Dissenter in ADM Jabalpur: Justice H.R. Khanna** was the sole dissenter defending personal liberty; **Justice A.N. Ray** was the CJI who authored the majority ruling.
5. **42nd vs 44th Amendment:** 42nd (1976) **increased** Lok Sabha term to 6 years; 44th (1978) **restored** term to 5 years and made Articles 20 and 21 inviolable.
6. **North vs South 1977 Pattern:** Congress was NOT routed everywhere; it was wiped out in North India (0 seats in UP/Bihar) but held its ground in South India (Andhra/ Karnataka).
7. **First Non-Congress PM: Morarji Desai** (March 1977), NOT Charan Singh or Atal Bihari Vajpayee.

Practice Questions (Exam Pattern)

Fifteen authentic CUET UG examination-standard multiple-choice questions testing conceptual, chronological, institutional, and factual mastery. Marking scheme: +5 for correct answer, −1 for incorrect attempt.

Part 1: Economic Strains, Student Movements & Judicial Clash

Q1. The nationwide 20-day All-India Railway Strike in May 1974 was organized and led by which prominent trade union leader?

(A) A.K. Gopalan (B) George Fernandes
(C) Morarji Desai (D) Charan Singh

Sol. Q1. George Fernandes led the National Coordination Committee for Railwaymen's Struggle in May 1974, bringing the national railway grid to a complete standstill for 20 days. **Answer: (B)**

Q2. In April 1973, which judge was appointed as the Chief Justice of India by superseding three senior Supreme Court judges who ruled in the Kesavananda Bharati case?

(A) Justice A.N. Ray (B) Justice J.M. Shelat
(C) Justice H.R. Khanna (D) Justice V.R. Krishna Iyer

Sol. Q2. Justice A.N. Ray was elevated as CJI in April 1973 by superseding three senior judges (Shelat, Hegde, Grover) who ruled against unfettered parliamentary power in Kesavananda Bharati. **Answer: (A)**

Q3. The Navnirman student movement of January 1974, which erupted over rising hostel mess food bills and corruption, occurred in which state?

(A) Bihar (B) Uttar Pradesh
(C) Gujarat (D) Punjab

Sol. Q3. The Navnirman Movement took place in Gujarat in early 1974, triggered by engineering hostel mess fee hikes, leading to Morarji Desai's fast and the dissolution of the state assembly. **Answer: (C)**

Q4. Who gave the historic clarion call for "Total Revolution" (Sampoorna Kranti) during the Bihar student agitation of 1974?

(A) Dr. Rammanohar Lohia (B) Jayaprakash Narayan
(C) Acharya Narendra Deva (D) K. Kamaraj

Sol. Q4. Jayaprakash Narayan (JP) accepted the leadership of the Bihar student movement and issued the historic call for "Total Revolution" (Sampoorna Kranti) across all walks of society. **Answer: (B)**

Q5. On 12 June 1975, which High Court judge invalidated the 1971 election of Prime Minister Indira Gandhi on grounds of corrupt electoral practices in an election petition filed by Raj Narain?

(A) Justice Jagmohan Lal Sinha of the Allahabad High Court (B) Justice P.N. Bhagwati
(C) Justice J.C. Shah (D) Justice H.R. Khanna

Sol. Q5. Justice Jagmohan Lal Sinha of the Allahabad High Court delivered the landmark verdict on 12 June 1975 in the election petition filed by socialist leader Raj Narain. **Answer: (A)**

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Part 2: Emergency Dimensions, Excesses & 42nd Amendment

Q6. The National Emergency on the night of 25 June 1975 was proclaimed by President Fakhruddin Ali Ahmed under which constitutional provision?

(A) Article 356 on grounds of failure of constitutional machinery
(B) Article 360 on grounds of financial breakdown
(C) Article 352 on grounds of "internal disturbance"
(D) Article 352 on grounds of "armed rebellion"

Sol. Q6. The 1975 Emergency was proclaimed under Article 352 on the ground of "internal disturbance". "Armed rebellion" was only substituted later by the 44th Amendment in 1978. **Answer: (C)**

Q7. Which major national newspapers chose to register silent resistance against executive pre-censorship during the Emergency by leaving their editorial columns completely blank?

(A) The Hindu and The Tribune
(B) The Indian Express and The Statesman
(C) The Times of India and Hindustan Times
(D) National Herald and Patriot

Sol. Q7. The Indian Express and The Statesman famously registered heroic silent defiance against state censorship by publishing blank editorial columns. **Answer: (B)**

Q8. The controversial 42nd Constitutional Amendment Act of 1976 extended the term of the Lok Sabha and State Legislative Assemblies from 5 years to:

(A) 4 years
(B) 7 years
(C) Indefinite duration
(D) 6 years

Sol. Q8. The 42nd Constitutional Amendment Act of 1976 extended the tenure of the Lok Sabha and Vidhan Sabhas from 5 years to 6 years (later restored to 5 years by the 44th Amendment). **Answer: (D)**

Q9. In the historic March 1977 General Elections, which newly formed umbrella political party defeated the ruling Congress party to form India's first non-Congress central government?

(A) Swatantra Party
(B) Bharatiya Jana Sangh
(C) Janata Party
(D) Congress for Democracy

Sol. Q9. The Janata Party was formed in early 1977 by the merger of Congress (O), Jana Sangh, Bharatiya Lok Dal, and Socialists, winning 295 seats and sweeping to power under Morarji Desai. **Answer: (C)**

Q10. Which Constitutional Amendment Act replaced the vague term "internal disturbance" with "armed rebellion" and prohibited the suspension of Articles 20 and 21 during an Emergency?

(A) 44th Constitutional Amendment Act, 1978
(B) 42nd Constitutional Amendment Act, 1976
(C) 52nd Constitutional Amendment Act, 1985
(D) 38th Constitutional Amendment Act, 1975

Sol. Q10. The 44th Constitutional Amendment Act of 1978 enacted by the Janata government introduced vital safeguards, including substituting "armed rebellion" for "internal disturbance" and making Article 20 and 21 inviolable. **Answer: (A)**

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Part 3: Inquiries, Jurisprudence & Electoral Geography

Q11. Which Commission of Inquiry was appointed by the Janata Party government in May 1977 to investigate allegations of abuse of authority, excesses, and malpractices committed during the Emergency?

(A) The Sarkaria Commission
(B) The Mandal Commission
(C) The Kothari Commission
(D) The Shah Commission headed by retired Chief Justice J.C. Shah

Sol. Q11. The Shah Commission of Inquiry headed by retired Chief Justice J.C. Shah was appointed in May 1977 to investigate administrative abuses and extra-constitutional excesses during the Emergency. **Answer: (D)**

Q12. During the 1975–1977 Emergency, hundreds of political leaders and dissidents were arrested without trial under which draconian preventive detention legislation?

(A) TADA
(B) POTA
(C) Maintenance of Internal Security Act (MISA)
(D) Armed Forces Special Powers Act (AFSPA)

Sol. Q12. The Maintenance of Internal Security Act (MISA) was ruthlessly weaponised during the Emergency to detain nearly 1.1 lakh political opponents and activists without trial. **Answer: (C)**

Q13. In the infamous ADM Jabalpur v. Shivkant Shukla (1976) case, also known as the Habeas Corpus case, which Supreme Court judge delivered the lone, courageous dissenting opinion defending personal liberty?

(A) Justice H.R. Khanna
(B) Justice A.N. Ray
(C) Justice P.N. Bhagwati
(D) Justice M.H. Beg

Sol. Q13. Justice H.R. Khanna delivered the sole courageous dissent in ADM Jabalpur, ruling that the State cannot deprive a person of life or liberty without the authority of law, even during an Emergency. **Answer: (A)**

Q14. Sanjay Gandhi's extra-constitutional 5-point programme implemented aggressively during the Emergency prominently included which controversial initiatives?

(A) Nationalisation of commercial banks
(B) Coercive mass sterilisation (vasectomies) and demolition of slums such as at Turkman Gate in Delhi
(C) Abolition of Privy Purses
(D) Launch of the Green Revolution

Sol. Q14. Sanjay Gandhi's 5-point programme was notorious for coercive mass vasectomies with bureaucratic quotas and the violent demolition of poor slums at Turkman Gate in Old Delhi. **Answer: (B)**

Q15. In the 1977 General Elections, what was the performance of the Congress party in the northern Indian states of Uttar Pradesh, Bihar, Punjab, and Haryana?

(A) Congress retained a slim majority in all four states
(B) Congress won only half the seats in Uttar Pradesh and Bihar
(C) Congress improved its performance due to the 20-Point Programme
(D) Congress was completely wiped out, winning zero seats across all four states, with both Indira Gandhi and Sanjay Gandhi losing their seats

Sol. Q15. Congress was completely wiped out in the Hindi heartland, winning zero seats in UP (0/85), Bihar (0/54), Punjab (0/13), and Haryana (0/10), with both Indira and Sanjay Gandhi suffering personal electoral defeats. **Answer: (D)**

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